

CLIC Case 0004

Country/Court: Colombia, Constitutional Court (Corte Constitucional)

Decision number/date: Sentencia C-488 de 2009, 2009-07-22

Crime / Issue: Genocide, Principle of Equality, Principle of Legality, Constitutional Bloc, Legislative Discretion (*Margen de Configuración*)

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A public lawsuit of unconstitutionality was filed before the Constitutional Court of Colombia challenging two distinct provisions within Article 101 of the Penal Code (Law 599 of 2000), which codifies the domestic crime of genocide. First, the plaintiff challenged the expression "by reason of their membership in the group" (*por razón de su pertenencia al mismo*), arguing that it added an unauthorized subjective motive that imposed a regressive and nearly impossible evidentiary burden on victims and prosecutors, contrary to international standards like the 1948 Genocide Convention and the Rome Statute. Second, he challenged the article's second paragraph, which established a lower penalty scale (10 to 25 years of imprisonment) for non-lethal genocidal acts - such as forced pregnancy, preventing births, and the forced transfer of children - compared to genocide committed through killing (30 to 40 years). The plaintiff contended that because genocide fundamentally protects the *right to existence of a human group*, all modalities are equally heinous, and graduating penalties unlawfully treated non-lethal group destruction as an attenuated offense, violating the constitutional bloc and the principle of equality.

Opposing arguments and interventions from state institutions, academic bodies, and civil society highlighted contrasting interpretations of international law and legislative power. The Ministry of Interior and Justice defended the entirety of the text, asserting that the intent phrase was an essential volitional element required to guarantee the principle of strict legality and distinguish genocide from ordinary homicides, and that differential sentencing properly reflected the unique gravity of extinguishing individual human life. The Procurador General de la Nación and the Colombian Commission of Jurists split their positions; they argued that the intent phrase was constitutional because it mirrored the international requirement that a group be targeted "as such," but they maintained that the lower penalty scale for non-lethal acts was unconstitutional because international law does not differentiate between the gravity of distinct genocidal methods. Conversely, academic experts from the Universidad del Rosario supported the lawsuit entirely, viewing both provisions as impermissible rollbacks of international protective standards.

The Constitutional Court first affirmed its jurisdiction under Article 241 of the Political Constitution and framed the primary legal issues around the scope and limits of the legislature's broad margin of configuration (*margen de configuración*) in criminal policy when measured against the *bloque de constitucionalidad* (constitutional bloc). The Court observed that while the Congress possesses expansive democratic authority to define crimes and calibrate penalties, this power is not absolute and must strictly respect non-derogable human rights obligations and international humanitarian law norms incorporated into the domestic constitutional order.

Regarding the first challenge, the Court declared the phrase "by reason of their membership in the group" constitutional (*exequible*). It reasoned that this language did not place an unconstitutional or regressive hurdle on the administration of justice. Instead, the Court held that the phrase acts as a necessary subjective normative ingredient that properly mirrors the standard found in international treaties - specifically the words "as such" used in the 1948 Genocide Convention and the Rome Statute. This element ensures compliance with the principle of strict legal certainty by clearly defining the specific intent (*dolus specialis*) required to differentiate systemic group destruction from ordinary domestic offenses.

Regarding the second challenge, the Court also declared the differential sentencing structure constitutional (*exequible*). The Court ruled that although all forms of genocide share the ultimate criminal objective of destroying a protected collective, the legislature is fully empowered to assess varying levels of punitive reproach based on the immediate legal interests (*bienes jurídicos*) affected. Because genocide committed through killing results in the immediate, irreversible destruction of individual human lives alongside the attack on the collective group, the legislature acted within its valid constitutional discretion by assigning it a higher penalty range than non-lethal structural methods, without violating international obligations or constitutional equality.